

P O R T E R | S C O T T

A PROFESSIONAL CORPORATION

Chad S. Tapp, SBN 214898

ctapp@porterscott.com

Tyler J. O'Connell, SBN 346673

toconnell@porterscott.com

2180 Harvard Street, Suite 500

Sacramento, California 95815

TEL: 916.929.1481

FAX: 916.927.3706

Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

vs.

CSAA INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

Defendants.

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF SPECIAL
MOTION TO STRIKE PLAINTIFF'S FIRST
AMENDED COMPLAINT PURSUANT TO
C.C.P. § 425.16 (ANTI-SLAPP MOTION)**

(CODE CIV. PROC. § 425.16)

DATE: MAY 13, 2026

TIME: 9:00 A.M.

DEPT: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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I. INTRODUCTION

Plaintiff's Amended Complaint ("FAC") constitutes an impermissible collateral attack on a final judgment entered after a full jury trial and extensive pre- and post-trial proceedings. In the underlying action, a jury returned a defense verdict on liability following the presentation of all evidence Plaintiff claims was "wrongfully obstructed." The Court thereafter denied Plaintiff's multiple post-trial motions challenging the verdict and judgment. Plaintiff has since filed a notice of appeal, which remains pending.¹

Rather than awaiting appellate review, Plaintiff now advances mere variations of all the same baseless arguments he litigated at trial. The only difference from the original trial is slight: Plaintiff now targets the original defendant's *insurance carrier*, CSAA, for CSAA's alleged litigation conduct, including: investigating Plaintiff's claim, "fund[ing] and direct[ing] the defense" at trial, "making false and misleading representations" to the Court regarding discovery disputes, and ultimately defeating Plaintiff's original action. (FAC ¶ 22F). Indeed, **the FAC seeks to impose liability based entirely on Defendants' litigation conduct in defending the underlying case—including discovery practices, motions in limine, and representations to the Court.** These allegations do not state a cognizable claim as a matter of law and instead fall squarely within the scope of conduct protected by California's Anti-SLAPP statute and the absolute litigation privilege.

Conduct which takes place in the course of litigation is protected from civil suit. Engaging in insurance claims evaluation, issuing pre-litigation denial letters, arguing in Court, and funding the defense of an insured are all protected activities, and California courts have long held that **lawsuits premised on such conduct are barred as a matter of law.** Plaintiff's current allegations are simply a misguided effort to undo his loss at trial and punish the original defendant's insurance carrier (CSAA) for funding a successful defense. Accordingly, the FAC is subject to a special motion to strike under Code of Civil Procedure section 425.16 because (1) each allegation targets protected litigation conduct, and (2) Plaintiff cannot establish a probability of prevailing on the merits of either of his causes of action. **The absolute litigation privilege independently bars Plaintiff's claims, and his claims fail for several reasons.** For these reasons, the Court should strike the FAC in its entirety without leave to amend and award Defendants their mandatory attorneys' fees and costs incurred in bringing this Special Motion to Strike.

¹ See *Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. **A173827**; (see also RFJN **Ex. Q**, Plf's Notice of Appeal; RFJN **Ex. R**, Plf's Notice of Designating Record on Appeal.

II. SUMMARY OF ARGUMENT

Plaintiff seeks to make an improper collateral attack on a properly rendered jury verdict and this Court's valid judgment. The FAC focuses on all Defendant's litigation activity—in its own capacity, and by and through its counsels—resulting in a defense verdict. All the alleged conduct is protected under Civil Code § 47(b) and Code Civ. Proc. § 425.16(e) as part of Defendants' pre-trial investigation and litigation conduct.

Plaintiff's FAC must be stricken, in its entirety as both prongs of the Anti-SLAPP analysis are satisfied. First, under prong one: The FAC's factual allegations arise entirely from Defendant's protected litigation conduct: pre-trial investigation and communications with the Court (by and through counsel).

Second, under prong two: Plaintiff cannot possibly meet his burden of offering admissible evidence establishing he has a probability of success on his causes of action. Neither Plaintiff's *First Cause of Action for Fraud and Deceit*, nor his *Second Cause of Action for Violation of Business and Professions Code § 17200 (UCL)* can survive. This is the case for several reasons including: i) all alleged activity is protected conduct under Civil Code § 47(b); ii) Plaintiff's entire theory is, in reality, a improper collateral attack on a prior valid judgment;² and iii) Plaintiff cannot establish his claims against a *third party's* insurance carrier.

Moreover, crucially Plaintiff's true remedy for allegations in the FAC is decidedly pursuing an appeal. And, indeed, Plaintiff has filed an Appeal, which remains pending.³ However, Plaintiff has still filed this action, with no legal authority to support it, especially in light of his pending appeal. The FAC has further substantive and procedural defects, including: i) Plaintiff does not have standing to bring these claims against a third-party tortfeasor's insurance carrier; ii) Plaintiff's statute of limitations has already run for both claims, at least as pertains to the Feb. 2021 denial letter; iii) the FAC's collateral attack on the prior judgment is legally unsupportable; and iv) Plaintiff cannot state a cause of action based on Defendant denying an insurance claim, pre-trial; and retaining attorneys who maintained that denial posture at trial and prevailed before the jury.

Therefore, the action should be dismissed.

² Plaintiff's original Complaint in this action explicitly represented to the Court that "*Plaintiff does not seek reversal or modification of any judgment in the Underlying Action.*" (See RFJN **Ex. T**, Plaintiff's Original Complaint in the instant action, ¶ 31); (but see RFJN **Ex. B**, Plaintiff's FAC in Related Case) (seeking to "set aside judgment").

³ (See *Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. **A173827**); (see also RFJN **Ex. Q**, Plf's Notice of Appeal; RFJN **Ex. R**, Plf's Notice of Designating Record on Appeal).

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Plaintiff is FRANCISCUS DYLAN ROSARIO (“Plaintiff”).

Defendant CSAA INSURANCE EXCHANGE (“CSAA”) was the insurance carrier for SUBHI ABDELHALIM (“Insured”) during the underlying trial.

Plaintiff has filed this new action (*See* RFJN **Ex. A**, *Plaintiff's FAC*) against the original defendant—from Plaintiff's prior personal injury lawsuit—SUBHI ABDELHALIM's insurance carrier: CSAA INSURANCE EXCHANGE ("CSAA" or "Defendant"). CSAA was the provider of ABDELHALIM's policy of insurance. This special motion to strike is filed on behalf of CSAA. (*See* RFJN **Ex. C**, *Register of Actions, Rosario v. Abdelhalim, Case No. CGC-21-594102*). Phillips, Spallas, and Angstadt, LLP, Priya D. Navaratnasingham, Alberto Reyna (collectively referred to as "PSA") were CSAA's retained insurance defense counsels who obtained a defense verdict at Plaintiff's underlying trial.

Plaintiff’s allegations against CSAA relate to Plaintiff’s belief that i) CSAA should not have denied his claim back in February 2021; and ii) that CSAA, by and through its retained defense counsels, made “false and misleading representations” (*FAC* ¶ 22F) to this Court (based on CSAA’s earlier claim denial) which resulted in Plaintiff being forced to litigate his underlying jury trial—which Plaintiff lost by defense verdict. (*See* RFJN **Ex. S**, *Defendant’s Notice of Entry of Judgment, Rosario v. Abdelhalim, Case No. CGC-21-594102*). Now, Plaintiff seeks to recast his prior litigation as a claim against the original defendant’s insurer: CSAA. The gravamen of Plaintiff’s current allegations swirl around all the same issues in the underlying case—differences of opinion on the weight of certain trial evidence (911 calls, bodycam footage, and CAD logs).

It is true that CSAA’s retained defense counsels *did* attempt to exclude the “objective liability evidence” (*See FAC* ¶ 4); however, the Court denied Defendant’s motions in limine targeting this evidence. (*See* RFJN **Ex. E**, *Def’s MIL* # 6; RFJN **Ex. F**, *Def’s MIL* # 8; RFJN **Ex. G**, *Def’s MIL* # 17; and RFJN **Ex. H**, *Order re Trial Scheduling and MILs*). Hence, Plaintiff was free to present to the jury, the complained-of “objective liability evidence.” (*See FAC* ¶ 4). And he did just that at trial.

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1 C. PLAINTIFF’S ORIGINAL SUIT ARISES OUT OF ALLEGATIONS THAT THE
2 INSURED HIT PLAINTIFF WITH HIS CAR, A CLAIM THAT WAS ULTIMATELY
3 REJECTED AT TRIAL DESPITE THE JURY’S CONSIDERATION OF THE
4 “OBJECTIVE LIABILITY EVIDENCE” IN QUESTION

5 Plaintiff’s underlying personal injury lawsuit arose from an alleged motor-vehicle-on-scooter
6 incident that occurred on February 4, 2021. Plaintiff alleged that he was struck by Insured’s vehicle while
7 Plaintiff was walking (or riding, it is unclear) a scooter through an intersection. Plaintiff filed suit against
8 Insured, alleging personal injuries, and the matter proceeded to trial. All the “foundational objective
9 liability evidence” (*See FAC* ¶ 4) (discussing 911 calls, bodycam footage, and CAD logs) referenced in
10 Plaintiff’s FAC was submitted to the jury and testimony was offered by both sides on the relevance (or
11 irrelevance) of that evidence. Ultimately, a defense verdict was returned in favor of the Insured. The jury
12 found that the Insured—Subhi Abdelhalim—was simply not negligent in causing the incident.

13 Even before trial, Plaintiff filed a series of motions seeking to disqualify the assigned trial judge:
14 the Honorable Garrett L. Wong. In his “Prayer to Judge Hon. Rochelle East” [sic], accompanying his
15 motions, Plaintiff drew specific attention to all the same factual complaints he makes in this current FAC,
16 which impute the acts of PSA as to Defendant (CSAA):

- 17 1) “[t]he defense has actively attempted to suppress not only the 911 records but also the official
18 police records”; (*See RFJN Ex. O*, p. 5:7-8, *Plf’s Prayer to Judge East*)
- 19 2) “With the financial backing of AAA (CSAA Insurance), the defendant has secured premier
20 legal representation, effectively impeding the course of justice. (*Id.* at 7:28-8:2)
- 21 3) Official 911 emergency records contain multiple admissions by the defendant, and eyewitness
22 testimony confirms that he forcefully ran me over”; (*Id.* at 8:2-3)
- 23 4) “[t]he defense clearly aims to keep everything out of the jury’s view, as denial is a core part of
24 [CSAA]’s modus operandi.” (*Id.* at 46:19-20)

25 This very Court issued a lengthy and abundantly clear Order denying Plaintiff’s motions seeking
26 to disqualify the trial judge. That order rejects Plaintiff’s evidentiary arguments, the same evidentiary
27 arguments presented here, in his FAC. (*See RFJN Ex. P*, *Order Denying Plf’s “Prayer” and 170.6*).
28 Plaintiff is re-raising all the same issues already; but now, he asserts a bevy of factual allegations against
CSAA for its counsels’ litigation activity. This is legally untenable under the Anti-SLAPP statute.

After trial, Plaintiff filed a flurry of motions to set aside the jury’s defense verdict and this Court’s
judgment, including: i) a Motion for Judgment Notwithstanding the Verdict (*See RFJN Ex. I*, *Plf’s JNOV*;
see RFJN Ex. J, *Plf’s Decl. ISO JNOV*; *see RFJN Ex. K*, *Def’s Opp. to Plf’s JNOV*); ii) Motion to Vacate;
iii) A Second Motion to Vacate for Fraud on the Court; iv) Motion for New Trial (*See RFJN Ex. L*, *Plf’s*

1 *Mtn for New Trial*; RFJN **Ex. M**, *Def's Opp. to Plf's Mtn for New Trial and Mistrial*); v) Motion for
2 Mistrial; vi) A Second Motion for Mistrial; vii) an Ex Parte Request for Stay; and viii) a Request for
3 statement of Decision. All Plaintiff's post-trial motions were denied. (See RFJN **Ex. N**, *Order on Plf's*
4 *Post-Trial Mtns*). Crucially, in those post-trial motions, Plaintiff essentially all the same meritless
5 arguments, and others, surrounding Defendant's alleged "mishandling" of the "objective liability
6 evidence" and alleged "fraud on the Court." (See *FAC* ¶ 1-4; 22; 25) Now, Plaintiff seeks to repackage all
7 those same arguments in this FAC against the trial victor's insurance carrier. This is legally untenable.

8 **D. DEFENDANT CSAA INITIALLY DENIED PLAINTIFF'S CLAIM AND**
9 **SUBSEQUENTLY HAD NO ROLE IN LITIGATION, ASIDE FROM RETAINING**
10 **INSURANCE DEFENSE COUNSELS AND FUNDING THE DEFENSE**

11 Plaintiff alleges in his related case that everyone involved on the defense team (including the
12 original party defendant) committed "fraud on the Court." (See RFJN **Ex. B**, *Plaintiff's FAC in Related*
13 *Case*). However, in this case, Plaintiff takes aim squarely at CSAA for its litigation conduct, in several
14 legally unsupportable ways. Ultimately, Plaintiff takes issue with a series of acts undertaken by CSAA
15 commencing with its initial claim denial—from February 2021—and culminating in CSAA "fund[ing]
16 and direct[ing] the defense in the underlying action." (*FAC* ¶ 22F). The FAC alleges a series of factual
17 allegations against CSAA, which are all subject to the litigation privilege:

- 18 1) CSAA issued "a pre-litigation ... liability-claim denial letter made knowingly or recklessly and
19 used as institutional leverage to discourage or curtail an injured claimant's pursuit of a valid claim
20 (a deny-delay-defend claim-suppression tactic). (*FAC* ¶ 1)
- 21 2) The core alleged misrepresentation is in a letter dated February 25, 2021, in which CSAA stated,
22 in substance, that it had "concluded" its investigation and "concluded" its insured was not liable.
23 (*FAC* ¶ 2)
- 24 3) the Denial Letter representation of a "concluded" investigation was materially false when made
25 because, at that time, CSAA had not obtained or reviewed basic, readily obtainable, and
26 foundational objective liability evidence for the incident, including:
 - 27 a. 911 audio;
 - 28 b. body-worn camera footage; and
 - c. computer aided dispatch records. (*FAC* ¶ 4)
- 4) "Plaintiff alleges that CSAA's later claim activity corroborates the falsity" of the initial denial
letter. (*FAC* ¶ 22D)
- 5) "Plaintiff further alleges that CSAA funded and directed the defense of the Underlying Action,
Case No. CGC-21-594102, through retained defense counsel, and that CSAA-funded counsel
subsequently repeated and perpetuated the denial pattern in court by making false and misleading
representations regarding receipt, possession, and prior production of the same foundational
objective evidence CSAA had failed to obtain before issuing the Denial Letter. Plaintiff alleges this
continuity between CSAA's pre-litigation misrepresentation and its litigation-stage denial posture

1 further corroborates the institutional deny-delay-defend purpose and scienter alleged herein.”
2 (FAC ¶ 22F)

- 3 6) “Plaintiff further alleges that the third-party litigation forced by CSAA’s Denial Letter
4 misrepresentation culminated in a 9-3 defense verdict in the Underlying Action, in which the jury
5 was deprived of the governing legal standard and foundational evidence” resulting in “a trial that
6 was corrupted by the ongoing consequences of CSAA’s initial misrepresentation.” (FAC ¶ 25A)

7 All acts alleged in the FAC target CSAA’s protected litigation conduct both in its own capacity
8 (pre-litigation investigation) and for conduct undertaken by CSAA’s retained insurance defense counsel:
9 PSA. (engaging in civil discovery and arguing motions in limine). Hence, the Anti-SLAPP statute applies.

10 IV. LEGAL STANDARD UNDER CODE CIV. PROC. § 425.16

11 The Legislature passed Code of Civil Procedure (“Code Civ. Proc.”) § 425.16 to protect against
12 strategic lawsuits used to attack individuals who exercise their rights under the First Amendment—
13 including affording protection for litigation activity. The Legislature adopted Code Civ. Proc. § 425.16 in
14 response to the disturbing increase in litigation “brought primarily to chill the valid exercise of the
15 constitutional rights of freedom of speech and petition.” Commonly referred to as the Anti-SLAPP Statute,
16 it “provides for the early dismissal of unmeritorious claims filed to interfere with the valid exercise of the
17 constitutional rights of freedom of speech and petition for the redress of grievances.” (*Club Members v.*
18 *Sierra Club* (2008) 45 Cal.4th 309, 312.) The Legislature has declared that the statute must be “construed
19 broadly” to that end. (*Fremont Reorganizing Corp. v. Faigin* (2011) 198 Cal.App.4th 1153, 1165.)

20 In application, the Motion involves a two-step process. Defendant must first make a prima facie
21 showing that the plaintiff’s claim arises from protected activity. (*City of Cotati v. Cashman* (2002) 29
22 Cal.4th 69, 76.) The burden then shifts to plaintiff to prove a probability of prevailing on the merits of the
23 claim. If plaintiff cannot meet that burden, the claim must be dismissed. (*Ibid.*)

24 A. **STEP ONE IS MET: PLAINTIFF’S FACTUAL ALLEGATIONS AGAINST 25 DEFENDANT ENTIRELY ARISE FROM PROTECTED ACTIVITY UNDER CODE 26 CIV. PROC. § 425.16 AND CIVIL CODE § 47(B)**

27 Each of the causes of action Plaintiff asserts against Defendant arise from protected activity under
28 the litigation privilege set forth in Civil Code § 47(b), which provides in relevant part:

A privileged publication or broadcast is one made...(b) In any (1) legislative proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the initiation or course of any other proceeding authorized by law and reviewable pursuant to Chapter 2...

“The litigation privilege . . . applies to any communication (1) made in judicial proceedings; (2)

1 by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that
2 have some connection or logical relation to the action.” (*L.G. v. M.B.* (2018) 25 Cal.App.5th 211, 219.)
3 The litigation privilege “is not limited to statements made during a trial or other proceedings, but may
4 extend to steps taken prior thereto, or afterwards.” (*Digerati Holdings, LLC v. Young Money*
5 *Entertainment, LLC* (2011) 194 Cal.App.4th 873, 889.) Pre-litigation statements are protected where
6 litigation is “contemplated in good faith and under serious consideration.” (*Id.*) “The wording of the statute
7 protects the right of litigants to the utmost freedom of access to the courts without fear of being harassed
8 subsequently by derivative tort actions.” (*Trinity Risk Mgmt., LLC v. Simplified Lab. Staffing Sols., Inc.*
9 (2021) 59 Cal.App.5th 995, 1004.)

10 Courts interpret “protected activity” broadly. (*Gilbert v. Sykes* (2007) 147 Cal.App.4th 13, 23.)
11 The requirement is that “the principal thrust or gravamen of the plaintiff’s cause of action” arises from
12 protected activity. (*Martinez v. Metabolife Inter’t* (2003) 113 Cal.App.4th 181, 188.) Protected activity
13 includes, in part, “any written or oral statement or writing made in connection with an issue under
14 consideration or review by a legislative, executive, or judicial proceeding... “[and] any written or oral
15 statement or writing made in connection with an issue under consideration or review by a legislative,
16 executive, or judicial body.” (Code Civ. Proc. § 425.16(e)(1)-(2).) **In short, “[s]tatements made in**
17 **litigation, or in connection with litigation, are protected by” the Anti-SLAPP statute.** (*Bergstein v.*
18 *Stroock & Stroock & Lavan LLP* (2015) 236 Cal. App. 4th 793, 803.) “When evaluating whether the
19 defendant has carried its burden under the first prong of the Anti-SLAPP statute, courts must be careful
20 to distinguish allegations of conduct on which liability is to be based from allegations of motives for such
21 conduct. Causes of action do not arise from motives; they arise from acts.” (*Hunter v. CBS Broadcasting,*
22 *Inc.* (2013) 221 Cal.App.4th 1510, 1520.) Finally, the Anti-SLAPP statute “squarely applies to any direct
23 attack on the *judgment* in [a] prior action, which resulted from [an opposing party’s] petition activity.”
24 *Church of Scientology v. Wollersheim* (1996) 42 Cal.App.4th 628, 648 (*disapproved of on other grounds*).

25 Here, all the conduct alleged against CSAA relates solely to the underlying lawsuit which
26 culminated in a months-long trial: irrefutably a judicial proceeding. All this alleged conduct is protected
27 as speech concerning that litigation and petitioning activity. Plaintiff’s allegations are solely based on i)
28 CSAA’s pre-litigation investigation and claim denial of Plaintiff’s (*a third party’s*) claim; and ii) CSAA’s

position as maintained by its insurance defense counsel, in litigation both pre-trial and during trial. Plaintiff baselessly alleges that the CSAA’s conduct was “fraudulent,” purely based on denying a meritless claim and then funding and directing a successful defense at trial on that same claim.

In short, all the specific factual allegations against CSAA target protected litigation conduct and are subject to the Anti-SLAPP statute’s absolute bar from litigation.

1. CSAA’s “Liability-Claim Denial Letter” is Protected Conduct – (FAC ¶ 1)

The FAC cites no authority for the proposition that an insurance carrier’s denial of a third-party claim can possibly constitute fraud. It cannot. Moreover, the alleged conduct is absolutely protected litigation conduct.

Courts consistently take an “expansive view of what constitutes litigation-related activities within the scope of section 425.16.” (*Kashian v. Harriman* (2002) 98 Cal.App.4th 892, 908.) Protected pre-litigation statements are those made in connection with proposed litigation contemplated in good faith and under serious consideration. (*A.F. Brown Elec. Contractor, Inc. v. Rhino Elec. Supply, Inc.* (2006) 137 Cal.App.4th 1118, 1128.) The “good faith and under serious consideration” requirement “focuses on whether the litigation was genuinely contemplated.” (*People ex rel. Fire Ins. Exchange v. Anapol* (2012) 211 Cal.App.4th 809, 824.) For example, pre-litigation demand letters—intended “to notify the other party that litigation is imminent unless certain steps are taken”—are protected pre-litigation statements. (*Aronson v. Kinsella* (1997) 58 Cal.App.4th 254, 271.)

Furthermore, Courts have long found “internal investigations” conducted in anticipation of litigation to be protected activity under the Anti-SLAPP statute. (*See Laker v. Bd. of Trustees of California State Univ.* (2019) 32 Cal.App.5th 745, 753, 760.) (finding that absent any illegality, a pre-litigation internal investigation constituted an “official proceeding authorized by law” under Section 425.16). The litigation privilege has also been held to apply to “statements made prior to the filing of a lawsuit.” (*Hagberg v. California Federal Bank* (2004) 32 Cal.4th 350, 361) (*see also Home Ins. Co. v. Zurich Ins. Co.* (2002) 96 Cal.App.4th 17, 20, 22–26, (concluding that an attorney's misrepresentation of available insurance policy limits to induce the settlement of a lawsuit is also protected). Finally, the California Supreme Court has highlighted the policy behind the Anti-SLAPP statute thus:

“...in immunizing participants from liability for torts arising from communications made during judicial proceedings, the law places upon litigants the burden of exposing during

1 trial the bias of witnesses and the falsity of evidence, thereby enhancing the finality of
2 judgments and avoiding an unending roundelay of litigation, an evil far worse than an
occasional unfair result.” (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 322.)

3 Here, CSAA reviewed the available evidence, including the statements of its Insured, and reached
4 a prompt denial position. This is protected conduct in anticipation of litigation. Indeed, CSAA had a duty
5 to promptly investigate Plaintiff’s then-pending claim, as codified in Insurance Code § 790.03 and 10 Cal.
6 Code Regs. § 2695.7, the latter of which provides: “Upon receiving proof of claim, every insurer[] ...
7 shall immediately, but in no event more than forty (40) calendar days later, accept or deny the claim, in
8 whole or in part.” This is precisely what CSAA did: comply with its statutory duty and issue a denial letter
9 with an understanding that “litigation [was] imminent” unless Plaintiff’s claim was accepted. (*Aronson*,
10 *supra*, 58 Cal.App.4th at 271.) This is a protected pre-litigation statement, protected by the Anti-SLAPP
11 statute.

12 **2. The FAC’s Claim that CSAA’s Denial Letter “Was Materially False” Because CSAA**
13 **“had not Obtained or Reviewed ... Objective Liability Evidence for the Incident” Again**
Targets Protected Conduct (*FAC* ¶ 4)

14 The same analysis above applies here to the alleged *falsity* of CSAA’s Denial Letter. This
15 allegation remains focused on protected conduct.

16 “The privilege extends beyond statements made in the proceedings, and includes statements made
17 to initiate official action.” (*Kashian, supra*, 98 Cal.App.4th at 913.) (*See Cabral v. Martins* (1999) 177
18 Cal.App.4th 471, 482 (“Case law establishes that communications that are intimately intertwined with,
19 and preparatory to, the filing of judicial proceedings qualify as petitioning activity for the purpose of the
20 anti-SLAPP statute.”) And “[a]ny doubt about whether the privilege applies is resolved in favor of
21 applying it.” (*Adams v. Superior Court* (1992) 2 Cal.App.4th 521, 529.) Furthermore, “communications
22 made in connection with litigation do not necessarily fall outside the privilege simply because they are, or
23 are alleged to be, fraudulent, perjurious, unethical, or even illegal.” (*Ibid.* at 920.)

24 CSAA’s issuing of a liability denial letter is a statutory and regulatory requirement in the context
25 of a submitted claim and pending litigation. The FAC alleges that CSAA’s denial letter was “materially
26 false,” or put simply: incorrect. It is not clear if the FAC intends to allege that, either i) the denial letter
27 was false insofar as CSAA had not actually closed its investigation into liability; or ii) the denial letter
28 was false insofar as CSAA should have reached a different conclusion and accepted the claim. Either way,

1 it is immaterial how Plaintiff thinks the denial letter was “false.” The issuance of that denial letter—be it
2 false, negligently issued, fraudulent, or otherwise—is protected conduct and subject to the Anti-SLAPP
3 statute’s protections. This is especially so as CSAA knew that this denial was likely “to initiate official
4 action” on Plaintiff’s part in filing his lawsuit. (*Kashian, supra*, 98 Cal.App.4th at 913.)

5 **3. Plaintiff’s Claim that “CSAA Funded and Directed the Defense” and Made “False and**
6 **Misleading Representations” to the Court While Maintaining its “Litigation-Stage**
7 **Denial Posture” Targets Protected Conduct (FAC ¶ 22F)**

8 These allegations now reach directly into the courtroom and allege that statements made by
9 CSAA—by and through its insurance defense counsel—are somehow actionable. They are not. Plaintiff’s
10 FAC alleges that the activities of CSAA—by and through its retained defense counsels—were “false or
11 misleading” to the Court. (FAC ¶ 22F). This is incontrovertibly protected conduct under the Anti-SLAPP
12 statute’s protection.

13 Statements and actions defending a client or insured are protected activity under California’s Anti-
14 SLAPP statute. (See *City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 767 (concluding that an
15 allegation that a defendant engaged in unlawful, unfair, and fraudulent business acts and practices “by
16 filing motions or pleadings [in] court” and “by filing a civil lawsuit” squarely concerned protected activity
17 under the Anti-SLAPP statute and was subject to dismissal). Anti-SLAPP protection also, necessarily,
18 applies to “making representations to [a] court, or preparing documents for filing in court.” (*Graham-Sult*
19 *v. Clainos* (9th Cir. 2014) 756 F.3d 724, 736.) (See, also, *Dove Audio, Inc. v. Rosenfeld, Meyer & Susman*
20 (1996) 47 Cal.App.4th 777, 784 (“Just as communications preparatory to or in anticipation of the bringing
21 of an action or other official proceeding are within the protection of the litigation privilege of Civil Code
22 [§ 47(b)], we hold that such statements are equally entitled to the benefits of section 425.16.”) Further,
23 “a complaint [need not] be drafted before the privilege will apply.” (*Aronson, supra*, 58 Cal.App.4th at
24 268.)

25 CSAA, by and through its retained insurance defense counsel, simply defended Insured at trial and
26 disputed the relevance of the cited “objective liability evidence.” (FAC ¶ 4). CSAA, through its retained
27 counsels, maintained through jury trial the original “liability-claim denial” posture, as articulated in
28 CSAA’s initial denial letter. (*Id.* at 1.) Admittedly, the FAC is not clear on exactly *how* “CSAA-funded
counsel subsequently repeated and perpetuated the denial pattern in court by making false and misleading

1 representations regarding receipt, possession, and prior production of the same foundational objective
2 evidence CSAA had failed to obtain before issuing the Denial Letter.” (*Id.* at 22F.) Still, the allegations
3 of statements “*in court*” (*Ibid.*) are only open to one reasonable interpretation: **those statements are**
4 **petitioning activity in defending Insured at trial.** (*See City of Colton, supra*, 206 Cal.App.4th at 767
5 (concluding a defendant’s acts of “filing motions or pleadings [in] court” are protected activity under the
6 Anti-SLAPP statute). Hence, there is no question that these allegations of CSAA’s and counsels’ “in court
7 ... representations” target protected petitioning activity and litigation conduct from the underlying jury
8 trial. (*FAC* at 22F.)

9 All this, taken together, is conduct constituting protected activity under Code Civ. Proc. § 425.16.
10 Therefore, the causes of action based on those allegations fail.

11 **B. STEP TWO IS MET: PLAINTIFF CANNOT PROVE A PROBABILITY OF SUCCESS**
12 **ON HIS CLAIMS**

13 After a defendant makes a *prima facie* showing that the plaintiff’s claims arise from protected
14 activity, the burden shifts to the plaintiff to show a probability of prevailing on the merits of his cause of
15 action. (*City of Cotati, supra*, 29 Cal.4th at 76.) If the plaintiff cannot meet that burden, the claim must be
16 dismissed. (*Id.*) To establish a probability of prevailing on the claim, “a plaintiff responding to an anti-
17 SLAPP motion must state and substantiate a legally sufficient claim.” (*Huntingdon Life Sciences, Inc. v.*
18 *Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th, 1228, 1244-45.)

19 Here, as further discussed below, Plaintiff cannot meet this burden because all his allegations touch
20 on privileged publications and statements that are barred by the litigation privilege of Civil Code § 47(b),
21 as they are entirely based on statements connected with anticipated and/or ongoing litigation. Further,
22 Plaintiff cannot show a probability of succeeding on the merits of his claim.

23 **1. Plaintiff’s Claims are Barred by the Litigation Privilege in Civil Code § 47(b)**

24 Plaintiff cannot establish a probability of prevailing on the merits of his claim because all the
25 alleged acts of Defendant’s are absolutely protected under the litigation privilege. The language of Civil
26 Code § 47(b) tracks the language discussed above in the Anti-SLAPP statute. Indeed, statements protected
27 under Civil Code § 47(b) are “equally entitled to the benefits of section 425.16.” (*Briggs v. Eden Council*
28 *for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1115, quoting *Dove Audio, Inc., supra*, 47 Cal.App.4th
at p. 784; *see also, Laker, supra*, 32 Cal.App.5th at p. 769 (“If the challenged action falls within the

1 litigation privilege, the trial court should grant an anti-SLAPP motion to strike.”.)

2 “A plaintiff cannot establish a probability of prevailing if the litigation privilege precludes the
3 defendant’s liability on the claim.” (*Digerati Holdings, supra*, 194 Cal.App.4th at p. 888; *see also, Laker,*
4 *supra*, 32 Cal.App.5th at p. 769 (“The privilege established by this subdivision often is referred to as an
5 absolute privilege, and it bars all tort causes of action except a claim for malicious prosecution.”), quoting
6 *Hagberg, supra*, 32 Cal.4th at 360; *see also Laffer v. Levinson, Miller, Jacobs & Phillips* (1995) 34
7 Cal.App.4th 117, 122 (Section 47(b) litigation privilege “is a defense to torts”.) Further, “[d]oubts about
8 the privilege’s applicability are resolved in favor of its use.” (*Pollock v. University of Southern California*
9 (2003) 112 Cal.App.4th 1416, 1430.)

10 The litigation privilege can satisfy both prongs of the Anti-SLAPP analysis. For example, in *Laker*,
11 the plaintiff sued his employer, Board of Trustees for California State University, for defamation arising
12 from a series of internal investigations conducted by the University. (*Laker, supra*, 32 Cal.App.5th at 753.)
13 After finding that the first prong of the Anti-SLAPP analysis was satisfied because an investigation,
14 authorized by statute, constituted an “official proceeding authorized by law” under Section 425.16, the
15 court held that the second prong was similarly satisfied because all of the statements made in connection
16 with the investigation were absolutely privileged under Civil Code § 47(b). (*Id.* at 770.)

17 The same is true here. To the extent Plaintiff claims that CSAA’s pre-litigation investigation and
18 denial letter was “fraudulent,” that cannot constitute a claim as issuing a liability position letter in a
19 contemplated litigation constitutes an “official proceeding authorized by law” under Section 425.16, like
20 in *Laker*. This logic holds all the truer with respect to Plaintiff’s allegations surrounding CSAA’s retained
21 defense counsels’ “representations” in Court, be they prior to or during trial. As discussed at length above,
22 each of Plaintiffs’ causes of action against Defendant is **premised on conduct protected by the litigation**
23 **privilege in Civil Code § 47(b), and therefore Plaintiff cannot possibly prevail.**

24 **2. Plaintiff’s FAC is an Unsupportable “Collateral Attack” on this Court’s Valid**
25 **Judgment**

26 Plaintiff is estopped from attempting this end-around of this Court’s underlying jury verdict and
27 entry of judgment. “A collateral attack is an attempt to avoid the effect of a judgment or order made in
28 some other proceeding.” *F.E.V. v. City of Anaheim* (2017) 15 Cal.App.5th 462, 471 (*quoting Rico v.*
Nasser Bros. Realty Co. (1943) 58 Cal.App.2d 878, 882.) “A judgment of a court of general jurisdiction

1 can only be set aside on collateral attack if the judgment is void on the face of the record.” (*Wouldridge*
2 *v. Burns* (1968) 265 Cal.App.2d 82, 84.) Finally, “collateral estoppel precludes relitigation of issues
3 argued and decided in prior proceedings.” (*Singh v. Lipworth* (2014) 227 Cal.App.4th 813, 826.)

4 Here, the FAC’s entire effort is to relitigate all the same issues presented in his underlying case,
5 which culminated in a defense verdict and valid judgment. Indeed, all the issues presented in this present
6 FAC were already “argued and decided in prior proceedings.” (*Singh, supra*, 227 Cal.App.4th at 826);
7 (see also RFJN **Ex. H**, *Order re Trial Scheduling and MILs*); (RFJN **Ex. P**, *Order Denying Plf’s “Prayer”*
8 *and 170.6*); (RFJN **Ex. S**, *Defendant’s Notice of Entry of Judgment*).

9 **3. Plaintiff’s Substantive Claims for Fraud and UCL Violations Cannot Survive for**
10 **the Same Fundamental Reasons**

11 As a general matter, both of Plaintiff’s claims fail for the same threshold reasons. First, Plaintiff
12 lacks standing for either of the alleged claims against CSAA—a third party’s insurance carrier—given the
13 lack of privity of contract between the parties. Second, the statute of limitations applies to CSAA’s
14 February 2021 denial letter, as Plaintiff had all information necessary at that time to dispute the denial
15 letter’s position (i.e.: Plaintiff was physically present for the alleged incident that CSAA denied coverage
16 for in its 2021 denial letter). Therefore, this Court should strike Plaintiff’s entire FAC against Defendant
17 without leave to amend.

18 **i. Plaintiff Cannot Prevail on His Cause of Action for Fraud.**

19 Plaintiff’s first cause of action for Fraud is barred by Civil Code § 47(b). But even *if* it were not,
20 Plaintiff still cannot demonstrate a probability of prevailing on the merits. As a threshold matter, Plaintiff
21 is clearly trying to assail a valid jury verdict and judgment—or, at a minimum, punish the original
22 defendant’s insurance carrier for providing a meritorious defense in obtaining that judgment.

23 In contrast to Plaintiff’s effort here, the U.S. Supreme Court has long held: “[t]here are no maxims
24 of the law more firmly established, or of more value in the administration of justice, than [those] ...
25 designed to prevent repeated litigation between the same parties in regard to the same subject of
26 controversy.” *U.S. v. Throckmorton* (1878) 98 U.S. 61, 65 (emphasis added.)

27 Furthermore, “[a] complaint for fraud must allege the following elements: (1) a knowingly false
28 representation by the defendant; (2) an intent to deceive or induce reliance; (3) justifiable reliance by the

plaintiff; and (4) resulting damages.” (*Service by Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807, 1816. “Misrepresentation, even maliciously committed, does not support a cause of action unless the plaintiff suffered consequential damages.” (*Orcilla v. Big Sur, Inc.* (2016) 244 Cal.App.4th 982, 1008.)

Here, Plaintiff cannot possibly demonstrate the required elements for fraud. First, Defendant’s representations (Feb. 2021 denial letter and “representations in Court”) were not false. CSAA denied liability and the jury agreed, culminating in the rendering of a defense verdict on liability. Second, CSAA had no “intent to deceive.” On the contrary, CSAA’s intent in issuing the denial letter was to apprise Plaintiff of a true fact: *CSAA was denying the claim for lack of liability on the part of its Insured*. This was a disputed claim. Were courts to treat a disputed claim for lack of liability as *fraud*, such a policy would lead to cascading and unending litigation—an absurd result.

Third, Plaintiff had no *reliance* on CSAA’s denial posture—maintained in denial letters and in Court. On the contrary, Plaintiff returned CSAA’s denial with disagreement and a lawsuit.

Fourth, and finally, Plaintiff has no cognizable damages. All Plaintiff’s cited damages are related to his “forced third party litigation and ...attorney-fee damages.” (*FAC* p. 9.) This is not an item of damage as it is precluded by the Economic Loss Rule. This flies in the face of the American Rule, where each side bears its own attorneys’ fees, at trial. All Plaintiff’s other cited damages fare no better as they are merely an attempt to repackage his underlying “bodily injury liability claim,” as a fraud case. (*FAC* ¶ 33.)

There are further reasons why Plaintiff’s fraud claim cannot survive. Liability cannot flow from insured to the insurance company in these circumstances. Courts have frequently held that an insurer cannot be held liable to an injured third party unless actual judgment against their insured has occurred. “Because the insurer’s duties flow to its insured alone, a third-party claimant may not bring a direct action against an insurance company. “As a general rule, a third party may directly sue an insurer only when there has been an assignment of rights by, or a final judgment against, the insured.” (*Shaolian v. Safeco Ins. Co.* (1999) 71 Cal.App.4th 268.) Here, Plaintiff obtained neither an assignment from, nor judgment against, the Insured, Mr. SUBHI ABDELHALIM. This is dispositive to these present claims.

ii. Plaintiff Cannot Prevail on His Cause of Action for Violation of the UCL.

For the same reasons discussed above, Plaintiff cannot prevail on his UCL claim. Plaintiff lacks standing and his statute of limitations has already run. Furthermore, there was nothing fraudulent or false

1 about CSAA’s claim denial in February 2021—the claim was, as CSAA stated, denied. That was a true
2 fact when stated. Neither can there be any unfairness to that claim denial as the jury agreed and rendered
3 a defense verdict on that same claim. Finally, to the extent Plaintiff’s FAC alleges that CSAA made “in
4 court” ... “false and misleading representations” regarding the “foundational objective evidence,” this,
5 again is barred by the litigation privilege and cannot constitute a claim under the UCL.

6 A “plaintiff may not use the UCL to ‘plead around’ an *absolute* bar to relief” *Zhang v. Superior*
7 *Court* (2013) 57 Cal.4th 364, 369; (see also *Moradi-Shalal v. Fireman’s Fund Ins. Companies* (1988) 46
8 Cal.3d 287, 306 (“[N]o enforceable claim accrues against the insurer until the insured’s liability is in fact
9 established.”) Indeed, “[t]he *Moradi-Shalal* court made it plain that ... violations of [Ins. Code] section
10 790.03(h) are themselves not actionable.” *Zhang, supra*, 57 Cal.4th at 369.

11 The language of Business and Professions code § 17200 states that “unfair competition shall mean
12 and include any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or
13 misleading advertising and any act prohibited by Chapter 1.” This section, colloquially referred to as the
14 UCL, or Unfair Competition Law, is designed to protect consumers against predatory practices by
15 businesses. This section is not meant to be a means to seek redress for a denial of a claim against a third
16 party’s insurance policy, but rather to prevent unfair competition in the marketplace. Further, the Code
17 imposes no duty on CSAA (a third party in the original matter) to provide evidence from their investigation
18 into the event involving their insured, nor does it seek to impose liability on Defendant for issuing a denial
19 letter based upon their good faith belief (and ultimately vindicated at trial) that their insured was not at
20 fault. Further, CSAA simply has no UCL liability to this *third-party* Plaintiff, in light of Plaintiff’s
21 complete failure to establish any liability as to the Insured: Subhi Abdelhalim. This alone is dispositive to
22 this claim.

23 Unfortunately for Plaintiff, he simply received an unfavorable outcome at his jury trial, which he
24 litigated in pro per. He now attempts to sue CSAA for denying his claim and forcing him to litigate,
25 unsuccessfully, through trial. This cannot constitute a valid cause of action under the UCL (nor fraud).
26 Hence, Plaintiff cannot succeed on the merits of his repackaged claims.

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V. CONCLUSION

Plaintiff's FAC is simply another attempt to get a second bite at the apple—by relitigating the same issues from his underlying jury trial. CSAA's acts with respect to its denial posture, culminating in a defense verdict, are all acts that are protected conduct under Code Civ. Proc. § 425.16 and Civ. Code § 47. Meanwhile, Plaintiff cannot demonstrate a probability of success on the merits of his claims. Therefore, Defendant respectfully requests that the Court grant this Special Motion to Strike and impose attorneys' fees and costs against Plaintiff for necessitating this motion.

Dated: April 9, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____
Chad S. Tapp
Tyler J. O'Connell
Attorneys for Defendant
CSAA INSURANCE EXCHANGE

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 9, 2026, I served the following document:

7 **MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF SPECIAL MOTION TO**
8 **STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT PURSUANT TO C.C.P. § 425.16**
9 **(ANTI-SLAPP MOTION)**

10 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
11	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
12	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
13	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

14 Addressed as follows:

15 **PLAINTIFF, IN PRO PER**

16 Franciscus Dylan Rosario
17 7624 Melody Drive
18 Rohnert Park, CA 94928
19 soltrinox@gmail.com

20 I declare under penalty of perjury under the laws of the State of California that the foregoing is
21 true and correct. Executed on Sacramento, California on April 9, 2026.

22 **Monique Schubert**
23 Monique Schubert